

Manoj Kumar Sinha v. State of U.P. and 2 Others

Allahabad High Court · Division Bench · 11 June 2026 · Writ - C No. 23559 of 2026 · **Writ disposed of; petitioner relegated to Clause 6.5; no disconnection for ten days**

HEADNOTE

A consumer who challenges an electricity bill as exaggerated, and seeks a writ quashing the bill and restraining disconnection, is relegated to the competent authority under Clause 6.5 of the Supply Code. If he applies under Clause 6.5 after completing the formalities within ten days, the application is to be considered and decided in accordance with law. For those ten days the licensee shall not disconnect. The Court does not examine the bill.

FACTUAL SUMMARY

Manoj Kumar Sinha challenged an electricity bill of Rs.2,25,470 as exaggerated. He asked that it be quashed and that officers of Purvanchal Vidyut Vitran Nigam Ltd. be restrained from disconnecting his connection. The Court treated the grievance as one against an electricity bill and pointed him to Clause 6.5. No other facts about load, consumption, or prior representation were recorded.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Billing objection — relegation to Clause 6.5; ten-day stay on disconnection

HOLDING

A writ seeking quashing of an exaggerated electricity bill and a restraint on disconnection is disposed of without examining the bill. The consumer has a remedy before the competent authority under Clause 6.5. If he applies under that clause after completing the formalities within ten days, the application shall be considered and decided in accordance with law. For ten days the respondent officers of the electricity department shall not disconnect. ¶ 2-5

FLAG The order cites 'Clause 6.5 of the UP Electricity Supply Code, 2006'. The Code in force is the 2005 Code. Recorded, not silently corrected. The deciding authority under 6.5 is not named.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILL OF RS.2,25,470 IS EXAGGERATED OR LIABLE TO BE QUASHED

Left to the Clause 6.5 authority if an application is made after completing the formalities within ten days. ¶ 1-3